NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement") is entered into as of the date of last signature below (the "Effective Date") by and between Pendant Inc., a corporation organized under the laws of Delaware ("Disclosing Party"), and Initech Corp., a corporation organized under the laws of Delaware ("Receiving Party").

Section 1. Purpose

The parties wish to explore a business opportunity of mutual interest and benefit and may disclose to each other certain confidential and proprietary information. The parties desire to protect such information through this Agreement.

Section 2. Definition of Confidential Information

For purposes of this Agreement, "Confidential Information" means all non-public information disclosed by the Disclosing Party to the Receiving Party, whether in written, oral, electronic, or visual form, including but not limited to business plans, financial data, customer lists, product specifications, source code, technical data, trade secrets, pricing information, and strategic initiatives. Confidential Information shall include information marked as confidential or that would reasonably be understood to be confidential given its nature and circumstances of disclosure.

Section 3. Exclusions from Confidential Information

Confidential Information does not include information that: (a) is or becomes publicly available through no breach of this Agreement; (b) is rightfully received by the Receiving Party from a third party without confidentiality obligations; (c) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information; (d) is required to be disclosed by law or court order, provided the Receiving Party gives prompt notice to permit the Disclosing Party to seek protective measures; or (e) was known to the Receiving Party prior to disclosure, as evidenced by contemporaneous written records.

Section 4. Obligations of Receiving Party

The Receiving Party agrees to: (a) maintain the Confidential Information in strict confidence using the same degree of care it uses to protect its own confidential information, but no less than reasonable care; (b) limit access to Confidential Information to employees, contractors, and advisors having a legitimate need to know and who are bound by written confidentiality obligations no less protective than this Agreement; (c) use the Confidential Information solely for evaluating the business opportunity described in Section 1; and (d) not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party.

Section 5. Permitted Disclosures

Notwithstanding Section 4, the Receiving Party may disclose Confidential Information when required by law, regulation, court order, or governmental authority, provided that the Receiving Party promptly notifies the Disclosing Party in writing to allow the Disclosing Party to seek an injunction or other appropriate relief.

Section 6. Return of Confidential Information

Upon termination of this Agreement or upon request by the Disclosing Party, the Receiving Party shall promptly return or destroy all Confidential Information and certify in writing such return or destruction, except that the Receiving Party may retain one archival copy for legal compliance purposes.

Section 7. Payment

If the parties proceed with the business opportunity, Initech Corp. shall pay Pendant Inc. the sum of One Hundred Sixty Thousand Dollars ($160,000.00) within thirty days of execution of a definitive agreement documenting the terms of such

opportunity.

Section 8. Term and Termination

This Agreement shall be effective as of the Effective Date and shall continue for a period of one year, unless earlier terminated. Either party may terminate this Agreement upon thirty days' written notice to the other party. The obligations under Section 4 shall survive termination for a period of two years with respect to trade secrets.

Section 9. No Obligation

Neither party is obligated to enter into any business relationship or transaction with the other party.

Section 10. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles.

Section 11. Entire Agreement

This Agreement constitutes the entire agreement between the parties concerning the subject matter and supersedes all prior agreements and understandings.